



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

FEB 13 2002

DOT-E 9287
(FOURTH REVISION)

EXPIRATION DATE: January 31, 2004

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Equilon Pipeline Company, LLC
Houston, Texas
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the use of non-DOT specification containers for the transportation in commerce of certain Class 3 materials. This exemption provides no relief from any Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.242 and § 173.243, in that a non-specification bulk container is not authorized.
5. BASIS: This exemption is based on the application of Equilon Pipeline Company, LLC dated December 17, 2001, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

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Proper Shipping Name/ Hazardous Materials Description --	Hazard Class/ Division	Identi- fication Number	Packing Group
Gasoline	3	UN1203	II
Petroleum crude oil	3	UN1267	I, II, III

7. SAFETY CONTROL MEASURES:

PACKAGING - Prescribed packaging is a non-DOT specification container described as a mechanical displacement meter prover mounted on a truck or trailer. The pressure vessel is made up of seamless or welded schedule 40 or stronger pipes ranging in size from 2.375 inches to 14 inches outside diameter. Pipe assembly is by 150 lb. or 300 lb. ASA welded flange joints. The maximum service pressure is 275 psig for assemblies with 150 lbs. ASA flanges and 720 psig for assemblies with 300 lb. ASA flanges at ambient temperature. The pipes and associated appurtenances have an internal volume varying from 10 to 420 gallons and the provers are designed to ANSI Standard B31.4.

a. The bumper for the truck or trailer must meet the requirements of § 178.345-8(d) and § 393.86.

b. During transportation, the pressure in the prover must not exceed 25 percent of the pipe pressure rating at ambient temperature.

c. TESTING - Each prover must be visually reinspected once a year and retested once every 5 years at not less than 75 percent of the prover's design pressure in accordance with § 173.32(e). Only meter provers requalified after May 31, 2000 are required to be in conformance with § 173.32(e).

d. OPERATIONAL CONTROLS - Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

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8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING - The pressure rating as determined from the pipe component with the lowest pressure rating must be marked on each truck or trailer.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle

10. MODAL REQUIREMENTS:

A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by § 172.700 through § 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



fr Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.

Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

po: sdc